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JUDGMENT SHEET

LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.1560 of 2026

Muhammad Soban

Vs.

Government of Pakistan, etc.

Petitioners by:- Mr. Amir Shahzad Anjum, Advocate in instant petition as well as in connected petition No.1557 of 2026.

Respondents by: Mirza Nasar Ahmad, Additional Attorney General and Qamar Hanif Ramy, Assistant Attorney General for Federation of Pakistan.

Makhdoom Awais, Assistant Director FIA and Zia Asim S.I. FIA.

Date of hearing: - **18.02.2026**

JUDGMENT

RAHEEL KAMRAN, J:- Through this consolidated judgment, I intend to decide the instant petition as well as connected Writ Petition No.1557 of 2026 titled as “*Ali Raza v. Govt. of Pakistan, etc.*”, as both arise out of identical facts, involve common questions of law and were heard together.

2. The petitioners, Muhammad Soban (passport No.AL5001271) and Ali Raza (passport No.SL9892742), were off-loaded on 24.12.2025 from Allama Iqbal International Airport, Lahore, while intending to travel to Kuala Lumpur, Malaysia, on Flight OD-132 with valid single-entry visas.

3. It is contended by the learned counsel that the petitioners were in possession of valid passports, visas, return air tickets and confirmed hotel bookings. It is further asserted that no criminal case, inquiry, blacklisting order, or placement on the Exit Control List was pending against them. The petitioners were not provided any notice, explanation, or reasons for their off-loading. It is submitted that the respondents were legally obliged to address the petitioners' off-loading through a well reasoned order, which was not furnished to them, thereby compelling the petitioners to approach this Court invoking its constitutional jurisdiction. It is further argued that the petitioners' off-loading were arbitrary, unlawful and in violation of their fundamental rights and constitutional guarantees enshrined in Articles 4, 10-A, 15, 18, 24 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973 (**"the Constitution"**).

4. The respondents, through written replies, contend that the petitioners were not blacklisted nor permanently prohibited from travelling abroad. In Writ Petition No.1560 of 2026, it is stated the petitioner failed to satisfactorily explain the purpose of his visit, could not provide documentation regarding an alleged interview and lacked sufficient funds as well as confirmed hotel bookings. In Writ Petition No.1557 of 2026, it is averred that the petitioner had insufficient money to show and an unpaid hotel booking. The respondents maintain that the off-loading was a preventive measure taken in good faith to ensure compliance with the Emigration Ordinance, 1979 (**"the Ordinance, 1979"**) and Standing Order No.31/2005, which prescribes procedures for scrutiny of travelers at international airports. It is contended that the impugned action was taken in accordance with law and policy, under directions of the Federal Investigation Agency, particularly in view of the heightened scrutiny for travel to high-risk destinations such as Malaysia and that the officers acted lawfully and without malafide.

5. Learned law officers emphasized that in the pleadings the petitioners themselves used the expression “to earn bread and butter,” which, according to them, indicates that the petitioners intended to seek employment abroad under the guise of visit visas. It is contended that such conduct attracts the mischief of the regulatory framework governing emigration. It is vehemently argued that the impugned action of off-loading was taken with lawful authority and the same did not violate any of the petitioners’ constitutional guarantees or fundamental rights.

6. In rebuttal, learned counsel for the petitioners clarified that the use of expression “to earn bread and butter” was inadvertently used due to typographical mistake and that both petitioners were travelling purely for visit purposes.

7. Heard. Available record perused with assistance of counsel for the parties.

8. The petitioners have invoked various Articles of the Constitution of the Islamic Republic of Pakistan, 1973. Article 4 of the Constitution guarantees individual to be dealt with in accordance with law and protects them from arbitrary commands and restrictions. Article 10-A of the Constitution guarantees fundamental right to fair trial and due process. It ensures that in determination of civil rights, obligations or any criminal charge, every person is entitled to due process and fair trial. Article 15 of the Constitution guarantees the fundamental right of freedom of movement and residence to every citizen. It ensures that citizens can move freely throughout the country, reside and settle in any part including to go abroad and return¹ subject to reasonable restrictions imposed by law in the public interest. Article 18 of the Constitution guarantees the freedom of trade, business, and profession, which is subject to reasonable

¹ *Government of Pakistan and another v. Dada Amir Haider Khan (PLD 1987 Supreme Court 504)* and *Pakistan Muslim League (N) through Khawaja Muhammad Asif, M.N.A. and others v. Federation of Pakistan through Secretary Ministry of Interior and others (PLD 2007 Supreme Court 642)*

regulation, including licensing and the prescription of minimum standards in the interest of public welfare and fair competition. Article 24 of the Constitution safeguards property rights and prohibits compulsory deprivation of property except in accordance with law and subject to compensation. Article 25 of the Constitution states that all citizens are equal before the law and are entitled to equal protection of the law. This Article is a fundamental right that ensures equality and non-discrimination for all citizens, regardless of gender, religion, caste, or region.

9. It is noteworthy that plea of the petitioners regarding violation of Articles 18, 24 and 25 of the Constitution is misconceived. The freedom of trade, business and profession guaranteed under Article 18 of the Constitution does not provide any guarantee to the citizen for employment abroad which is a subject matter for the sovereign state wherein such employment is to be undertaken. Article 24 of the Constitution is equally not attracted to the controversy herein for the reason that no properties of the petitioners are being acquired from the impugned action by the respondents. The petitioners have also not alleged and established how others similarly placed to them have been extended different treatment, therefore, no case of discrimination is made out. However, what requires consideration of this Court in these petitions are questions whether the petitioners were attempting to proceed abroad for employment under the guise of visit visas? If so, whether they were off-loaded arbitrarily and without due process of law in violation of the guarantees enshrined in Articles 10-A of the Constitution?

10. Sections 4, 8 and 17 of the Ordinance, 1979 vest the authorities with power to control and regulate emigration, to ensure that departures from Pakistan are in conformity with law and to prevent unlawful emigration. Section 4 obligates the Director-General to take necessary measures to control and regulate emigration and to safeguard the welfare of emigrants. Section 8 renders emigration unlawful if it is not in

conformity with the Ordinance and the rules. Section 17 provides penal consequences for attempts to emigrate in contravention of the law. These provisions reflect a legislative policy aimed at preventing exploitation of citizens and curbing illegal migration. For ready reference, the above sections of the Act are reproduced below:-

Section 4-Functions of Director-General.-Subject to the provisions of this Ordinance and the overall supervision and control of Federal Government, the Director-General shall take such measures as may be necessary-

- a) (x x x x x)²
- b) to control and regulate such emigration,
- c) to look after the interest and welfare of emigrants; and to discharge and perform such other duties and functions as may be assigned to him by the Federal Government.

Section 8-Regulation of Emigration.-

"Emigration from Pakistan to all countries of the world for the time being recognized by Pakistan shall be lawful if it is in conformity with the provisions of this Ordinance and the rules.

Section 17. Unlawful emigration, etc.-

(1) Whoever, except in conformity with the provisions of this Ordinance and rules, emigrates or departs or attempts to emigrate or depart shall be punishable with imprisonment for a term which may extend to five years or with fine or with both.

...

11. The Standing Order No.31/2005, annexed by the respondents in their report and parawise comments, elaborates the responsibilities of Immigration Officers. They are empowered to scrutinize travel documents, endorsements, travel history, tickets, hotel bookings and availability of funds and to detect inconsistencies suggestive of unlawful intent. The Counter Officer conducts the initial scrutiny of passengers' travel documents and refers doubtful cases for further examination. The Special Checking Officer, being a senior and experienced official, performs selective and detailed verification to detect forgery, inconsistencies, and non-compliance with travel requirements and recommends clearance or off-loading. The Shift In-charge supervises the

² In Section 4, clause (a) was omitted by the Emigration (amendment) Ordinance, 1980 (LIV of 1980) on 6th December, 1980.

overall immigration shift, ensures proper procedure and record maintenance, and makes final, prompt decisions on cases referred by the Special Checking Officer. The Standing Order contemplates that where sufficient grounds exist for off-loading, the matter shall be referred to the Shift In-Charge and recorded accordingly.

12. The statutory authority is, however, not synonymous with unfettered discretion. Every administrative action must satisfy legal and constitutional requirements of reasonableness and due process. The right to travel abroad, though subject to statutory regulation, has consistently been treated as a valuable civil right. Any restriction thereon must be lawful, proportionate and supported by reasons. The doctrine of proportionality, which has gained firm recognition in our jurisprudence, requires that administrative measures impairing constitutional guarantees must be necessary and based on the least restrictive means available to achieve the legitimate objective. Preventing unlawful emigration is a legitimate objective, however, the means adopted must not transgress constitutional safeguards such as fulfillment of due process requirements.

13. The contention raised by the learned law officers that the expression used by the petitioners in their pleadings “to earn bread and butter,” reflects an intention to seek employment abroad under the pretext of a visit visa. In addressing this contention, this Court observes that the possibility of the petitioners intending to migrate abroad for employment cannot be ruled out, as it is apparent from the language employed and the grounds advanced in the petitioners’ pleadings. The expression used by the petitioners themselves reflects an objective of seeking gainful employment, which indicates that their stated purpose of visiting abroad was not purely for a temporary visit but was intertwined with the intent to work, thereby falling within the regulatory framework governing emigration.

14. Be that as it may, it is an uncontroverted position that no written order assigning reasons was furnished to the petitioners at the time of off-loading. Recording of reasons and communication of the same lies at the heart of fair administration. It is a precursor to ensuring that the discretion is exercised judiciously, deters arbitrariness and facilitates judicial scrutiny. The absence of written reasons deprives the affected person of meaningful opportunity to challenge the action and undermines transparency.

15. In the present cases, the respondents rely upon alleged insufficiency of funds and doubtful hotel bookings. These considerations may legitimately form part of scrutiny. The respondents have argued that off-loading is merely a preventive administrative step and not a punitive measure, therefore, detailed proceedings are not required. This argument, though attractive at first blush, cannot be accepted in its entirety. Even preventive measures must adhere to the principles of natural justice, unless expressly excluded by statute. Nothing in the Ordinance of 1979 excludes the requirement of recording and communicating reasons. On the contrary, administrative fairness demands that a citizen be informed why he has been restrained from travelling abroad.

16. Another significant aspect is proportionality. Even if doubts existed, the least restrictive course could have been to require supplementary documentation for future travel. Off-loading at the airport, moments before boarding, carries financial, reputational and psychological consequences which must be mitigated to the maximum, even if unavoidable. Such action, though preventive, is not trivial in effect and therefore demands heightened procedural care.

17. Absence of a structured review mechanism against an off-loading decision is another aspect that merits consideration. In practical terms, an aggrieved passenger is compelled to invoke constitutional jurisdiction over matters which ordinarily ought to have been resolved

administratively and efficaciously to meet the due process requirement enshrined in Article 10-A of the Constitution.

When confronted learned Additional Attorney General for Federation of Pakistan concedes and assures that he will take up the issue with Ministry of Interior to provide one such forum to satisfy the requirement that administrative discretion ought to be accompanied by accountability which presupposes availability of review. It must, however, be clarified that this Court is not substituting its own assessment for that of Immigration Officers in matters of factual scrutiny. The authorities remain competent to examine documentation, assess financial capacity and evaluate credibility. Judicial interference is warranted only where the action is shown to be arbitrary, unsupported by recorded reasons or violative of constitutional guarantees.

18. In the cases at hand, there is no material placed on record suggesting that the petitioners have been blacklisted or permanently barred. The impugned action appears to be a one-time preventive measure based upon perceived documentary deficiencies. However, in the absence of written reasons and an articulated basis communicated to the petitioners, the action cannot be sustained to the extent it operates without transparency.

19. Upshot of the above discussion is that while upholding the statutory authority of the respondents to regulate emigration under the Ordinance, 1979 and the relevant Standing Order, it is held that such authority must be exercised in conformity with constitutional safeguards. Henceforth, in every case of off-loading, the competent officer shall record brief but specific reasons in writing and provide a copy thereof to the concerned passenger at the earliest.

Insofar as the present petitioners are concerned, the impugned off-loading shall not operate as a permanent restraint. If the petitioners

intend to travel abroad on valid visit visas and comply with the documentary and financial requirements prescribed, they shall be at liberty to do so, subject to scrutiny in accordance with law.

With these observations, both petitions are **disposed of**. There shall be no order as to costs.

(RAHEEL KAMRAN)
JUDGE

*Waqas**

Approved for reporting

JUDGE